

party (necessary and incapable of being joined), and the demurrer must be sustained without leave to amend.

16. 9:00 AM CASE NUMBER: N26-0497
CASE NAME: PETITION OF: NATIONWIDE INSURANCE COMPANY OF AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NATIONWIDE INSURANCE COMPANY OF AMERICA
TENTATIVE RULING:

Petitioner Nationwide Insurance Company of America seeks to compel Sheilagh Oliver to arbitration pursuant to agreement. Petitioner has provided a facially valid arbitration clause as well as demonstrated failure of Respondent to comply. The Court has received no timely opposition. Good cause shown, the Court **grants** the Petition. The parties are ordered to arbitrate this matter pursuant to their agreement.

The Court grants fees and costs, but believes they should be reduced. Respondent is ordered to pay \$600 in fees, to compensate Petitioner's counsel for three hours of time at the requested rate of \$200 per hour.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C26-00106
CASE NAME: FRANCISCO FRANCO VS. JUNE YOUNG
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: YOUNG, JUNE GRACE
TENTATIVE RULING:

Defendant June Young moves to compel further responses to Form Interrogatories and Special Interrogatories served on Plaintiff Francisco Franco in this action relating to a motor vehicle accident. The Court received no timely opposition to the Motion.¹ On July 30, Defendant filed a Notice of No Opposition Received in which she noted that she *had* received amended interrogatory responses. She appears now to be withdrawing her Motion with respect to the Special Interrogatories and also with respect to most of the Form Interrogatories. Unfortunately, one of the Form Interrogatories she reports she "still finds issue with" was not in the original Motion and does not appear in any of the papers. The Court therefore can only address Form Interrogatory Nos. 6.4 and 8.6.

Form Interrogatories

Form Interrogatory No. 6.4

This interrogatory seeks information relating to health care treatment arising out of the accident.

¹ The Court notes that, in case it has not previously been made clear, this matter has been assigned to Department 10 for all purposes.